

Chintala Srinivasa Rao vs Smt. Chintala Sridevi on 13 October, 2022

Bench: Shameem Akther, Nagesh Bheemapaka

THE HON'BLE Dr. JUSTICE SHAMEEM AKTHER
AND
THE HON'BLE SRI JUSTICE NAGESH BHEEMAPAKA
FAMILY COURT APPEAL No.147 of 2009

JUDGMENT :

(Per Hon'ble Dr.SA,J) This appeal, under Section 19 of the Family Courts Act, 1984, is filed by the appellant/petitioner/husband, challenging the order and decree dated 02.03.2009 passed in O.P.No.521 of 2008 by the learned Judge, Family Court, Ranga Reddy District, at L.B.Nagar, Hyderabad, wherein the subject O.P filed by the appellant/petitioner/husband against the respondent/ respondent/wife, under Section 13(1)(ia) of Hindu Marriage Act, 1955, seeking to grant divorce by dissolving the marriage performed in between the appellant/husband and the respondent/wife on 24.11.1999, was dismissed.

2. Heard the submissions of Sri M.S.N.Prasad, learned counsel for the appellant and perused the record.

3. No representation for the respondent. On previous occasion also, there was no representation for the respondent.

4. The learned counsel for the appellant/husband would contend that though there is ample evidence to substantiate 2 Dr.SA,J & NBK,J FCA No.147 OF 2009 that there was cruelty and desertion on the part of the respondent/wife as she instituted several criminal cases against the appellant/husband and his family members, the Court below erroneously dismissed the subject O.P. The Court below did not properly appreciate the oral and documentary evidence on record. At no point of time, the respondent/wife was willing to join the company of the appellant/husband. The respondent/wife made false allegations of demand of dowry and harassment against the appellant/husband. In spite of so many sacrifices made by the appellant/husband, the respondent/wife did not lead marital life with the appellant/husband. Instead, she had gone to the extent of complaining to the passport authorities and US embassy making false allegations. All these acts of the respondent/wife amounts to cruelty and she deserted the appellant/husband from the year 2007 onwards. No efforts were made by the respondent/wife to join the appellant/husband to lead marital life. There are no chances of reunion between the parties to the litigation. The marriage between the parties has broken down irretrievably. There is substantial evidence on record to prove cruelty and desertion on the part of the respondent/wife and ultimately prayed to set aside the order under challenge and allow the appeal by dissolving the marriage 3 Dr.SA,J & NBK,J FCA No.147 OF 2009 performed in between the appellant/husband and the respondent/wife.

5. In view of the above submissions, the points that arise for determination in this appeal are as follows:

- i) Whether the respondent/wife had deserted the appellant/husband?
- ii) Whether the impugned order and decree dated 02.03.2009 passed in O.P.No.521 of 2008 by the learned Judge, Family Court, Ranga Reddy District, at L.B.Nagar, Hyderabad, refusing to grant a decree of divorce to the appellant/husband under Section 13(1)(ia) of the Hindu Marriage Act, 1955, is liable to be set aside?

POINTS:-

6. It is not in dispute that the marriage between the appellant/husband and the respondent/wife was performed on 24.11.1999 at Vijayawada, as per Hindu rites and customs and they are living separately from the year 2007 onwards.

7. The appellant/husband filed the subject O.P.No.521 of 2008 under Section 13(1)(ia) of Hindu Marriage Act, against the respondent/wife, seeking to grant divorce by dissolving the marriage performed between him and the respondent/wife on 24.11.1999. On behalf of appellant/husband, he himself got examined as PW.1 and his father was examined as PW.2. He 4 Dr.SA,J & NBK,J FCA No.147 OF 2009 got marked Ex.A.1-marriage photos along with negatives, Ex.A.2-office copy of legal notice dated 23.04.2004, Ex.A.3 is the reply notice dated 09.05.2004, Ex.A.4 is the C.C of FIR No.55/2003 dated 18.02.2003, Ex.A.5 is C.C of complaint lodged by respondent on 24.12.2003, Ex.A.6 is reply notice dated 09.05.2004, Ex.A.7 is the C.C of written statement filed by the brother of the respondent in O.S.No.111/2004 on the file of IV Additional District Judge (FTC), Ranga Reddy District and Ex.A.8 is the C.C of order dated 27.06.2005 passed by the Hon'ble High Court to transfer O.P.No.520 of 2004. On behalf of respondent/wife, she herself got examined as RW.1, her father was examined as RW.2, her sister-in-law was examined as RW.3 and third party to the proceedings, who is known to the family of the respondent, was examined as RW.4. No document was marked on behalf of respondent/wife. The Court below vide impugned order and decree dated 02.03.2009 dismissed the subject O.P holding that the appellant/husband could not establish the grounds for grant of divorce.

8. As seen from the material placed on record, the respondent/wife instituted several criminal cases against the appellant/husband and his family members. Ex.A.4 reveals 5 Dr.SA,J & NBK,J FCA No.147 OF 2009 registration of Crime No.55/2003 on the file of Kusaiguda Police Station against the appellant/husband for the offence under Section 498-A IPC. It is brought to the notice of this Court by the learned counsel for the appellant that in Crime No.55/2003 of Kusaiguda Police Station, charge sheet was filed and it was numbered as C.C.No.88 of 2005 and ultimately, the said C.C ended in acquittal vide judgment dated 18.08.2011 passed by the learned X Metropolitan Magistrate, Cyberabad at Malkajgiri. Ex.A.5 is the C.C of complaint lodged by respondent on 24.12.2003. According to the learned counsel for the appellant, pursuant to the complaint dated 24.12.2003 lodged by the respondent/wife, a case in Crime No.421/2003 on the file of Kusaiguda PS, was registered against the appellant/husband and his family members for the offences under

Sections 498-A, 379, 506 and 323 IPC and subsequently, the said case was proved as false and the police filed final report, accordingly. Ex.A.7 is the C.C of written statement filed by the brother of the respondent in O.S.No.111/2004 on the file of IV Additional District Judge (FTC), Ranga Reddy District. The said document was filed to prove that the appellant/husband had transferred some amounts to his brother-in-law and father-in-law. It is brought to the notice of this Court by the learned counsel for the 6 Dr.SA,J & NBK,J FCA No.147 OF 2009 appellant that said suit filed by the appellant/husband for recovery of monies which he gave towards loan to the father and brother of the respondent/wife was partly decreed on 25.10.2007 for an amount of Rs.8,97,323/-.

9. Apart from the above documentary evidence, there is also oral evidence of PW.1-appellant/husband. PW.1 in his chief- affidavit filed before the Court below stated that he completed M.Tech in Aerospace Engineering from IIT Khanpur and he got job in TCS at Bombay as Software Engineer. He stated that his marriage with the respondent was solemnized on 24.11.1999 and at the time of marriage, no dowry or any gift was given to him. After marriage, about 3 months he stayed alone at Mumbai and thereafter in the month of March, 2000 he took a house on rent in Mumbai and requested the respondent to come and join him. The respondent/wife along with her brother and parents came to Mumbai and stayed there for two days and went back to Hyderabad with her parents and brother stating that she do not want to stay at Mumbai and asked the appellant/husband to get transferred to Hyderabad. Thereafter, the appellant/husband shifted to USA and requested the respondent/wife to join him in USA but she did not agree for that and asked the appellant to 7 Dr.SA,J & NBK,J FCA No.147 OF 2009 resign his job and stay back in India. The appellant resigned his job and joined in WIPRO technologies at Hyderabad in November, 2000. The respondent/wife used to stay with her parents and brother. Therefore, the appellant/husband was forced to stay in the house of parents of the respondent/wife at Kushaiguda. The respondent did not agree to live separately with the appellant and she does not want to leave her parents. Though the appellant/husband made his best efforts, there was no happiness in his marital life. The appellant had also parted some money for the benefit of the family members of the respondent. The appellant had given several instances to demonstrate that his marriage ran into rough weather. There is also evidence of other witnesses to that effect. Finally, both the appellant/husband and respondent/wife are living separately from the year 2007 onwards. No efforts were made by either of the parties to live together.

10. Here, it is pertinent to state that irretrievable breakdown of marriage by itself is not a ground for divorce under the Hindu Marriage Act, 1955. But, where marriage is beyond repair on account of bitterness created by the acts of the husband or the wife or of both, the Courts have taken the irretrievable 8 Dr.SA,J & NBK,J FCA No.147 OF 2009 breakdown of marriage as a very weighty circumstance amongst others, necessitating severance of marital tie. A marriage which is dead for all purposes cannot be revived by the Court's verdict, if the parties are not willing. This is because marriage involves human sentiments and emotions and if they are dried-up, there is hardly any chance of their springing back to life on account of artificial reunion created by the Court's decree.

11. It is settled law that this Court grants a decree of divorce only in those situations in which the Court is convinced beyond any doubt that there is absolutely no chance of the marriage surviving and it is broken beyond repair. Even if there are minute chances of survival of marriage, it is not for

the Court to use its power to dissolve the marriage as having broken down irretrievably.

12. In Naveen Kohli Vs. Neelu Kohli¹, a three-Judge Bench of the Hon'ble Apex Court observed as follows:

"Once the marriage has broken down beyond repair, it would be unrealistic for the law not to take notice of that fact, and it would be harmful to society and injurious to the interests of the parties. Where there has been a long period of continuous separation, it may fairly be surmised that the matrimonial bond is beyond repair. The marriage becomes a fiction, though supported by a legal tie. By refusing to sever that tie the law in such cases does not (2006) 4 SCC 558 9 Dr.SA,J & NBK,J FCA No.147 OF 2009 serve the sanctity of marriage; on the contrary, it shows scant regard for the feelings and emotions of the parties."

13. The Hon'ble Apex Court, in a catena of judgments, has exercised its inherent powers under Article 142 of the Constitution of India for dissolution of a marriage where the Court finds that the marriage is totally unworkable, emotionally dead, beyond salvage and has broken down irretrievably, even if the facts of the case do not provide a ground in law on which the divorce could be granted.

14. In the instant case, as seen from the material placed on record, the marriage between the appellant/husband and the respondent/wife has broken down beyond repair. The acts of the respondent/wife i.e, lodging of criminal cases against the appellant/husband and his family members and harassing them constitute cruelty. There is also long continuous separation in between the parties, which clearly demonstrate that the marital bond in between the parties is beyond repair. There is no possibility of reunion among the appellant/husband and the respondent/wife. In view of the facts and circumstances of the case, we are convinced beyond any doubt that the marriage between the parties to the litigation is totally unworkable, emotionally dead, beyond salvage and has broken down 10 Dr.SA,J & NBK,J FCA No.147 OF 2009 irretrievably and as such, it necessitates severance of marital tie between the parties on the ground of cruelty, desertion and as it is irretrievable broken down.

15. Accordingly, this Family Court Appeal is allowed by setting aside the order, dated 02.03.2009, passed in O.P.No.521 of 2008 by the Judge, Family Court, Ranga Reddy District, at L.B.Nagar, Hyderabad. Consequently, the O.P.No.521 of 2008 stands allowed and the marriage performed in between the appellant/husband and the respondent/wife on 24.11.1999 stands dissolved by a decree of divorce.

Miscellaneous petitions, pending if any, in this appeal, shall stand closed. No costs.

_____ Dr. SHAMEEM AKTHER, J _____
NAGESH BHEEMAPAKA, J Date: 13.10.2022 scs